

24STCV21039 24STCV21039

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 24STCV21039 Hearing Date: July 8, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

GUILLERMO

RIVEROS-CHAVEZ,

Plaintiff,

vs.

CASSANDRA

ANAIIS TOLLETT

Defendant

Case No.:

24STCV21039

Hearing

Date:

July 8, 2026

[TENTATIVE]

ORDER DEEMING MOTION TO DEEM ADMISSIONS
ADMITTED MOOT

I. BACKGROUND

Defendant Cassandra Anais Tollett ("Tollett") allegedly failed to yield her vehicle to Plaintiff Guillermo Riveros-Chavez's ("Riveros-Chavez") vehicle, resulting in the two vehicles colliding. Riveros-Chavez sues Tollett for two causes of action: negligence and negligence per se.

On May 29, 2026, Riveros-Chavez filed the instant motion to deem the Request for Admissions, Set One, admitted against Tollett. Riveros-Chavez also requests the court impose sanctions of \$1,110.00 against Tollett.

Tollett opposes. Riveros-Chavez does not reply.

II. LEGAL STANDARD

Code of Civil Procedure section 2023.030, subdivision (a),^[1] provides that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." According to section 2023.010, subdivision (d), misuse of the discovery process includes "failing to respond or to submit to an authorized method of discovery."

Under section 2033.280, if a party fails to serve a timely response to a request for admissions, the following rules apply:

"(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion."

III. DISCUSSION

A.

Motions to Deem

Admitted

Riveros-Chavez

requests the Court deem the Request for Admissions, Set One, admitted against Tollett. Under section 2033.280, subdivision (b), a party may move to deem the truth of any matters specified if the responding party fails to submit timely responses to a request for admissions. A timely response is either within 30 days after service of the demand or within the extended timeframe agreed upon by parties. (§ 2033.250, subd. (a).)

Riveros-Chavez

served the Request for Admissions on August 29, 2025. (Mot., Barkhordar Decl. ¶ 2, Ex. A.) Responses were initially due September 30, 2025. Tollett did not serve responses by this date. (Id. at ¶ 3.) On May 12, 2026,

Riveros-Chavez offered Tollett an one-week extension, until May 19, 2026, to provide objection free responses. (Id .at ¶ 4.) Tollett did not respond to this offer or serve responses prior the filing of this motion.

On June 15, 2026, Tollett served code-compliant responses to the Request for Admissions, without objections. (Sullivan Decl. ¶ 3, Ex. A.) As Tollett served substantially code-compliant responses prior to the hearing on this motion, the Court deems the motion MOOT. (§ 2033.280, subd. (c).)

B. Sanctions

Riveros-Chavez is entitled to sanctions pursuant to section 2033.280, subdivision (c), as Tollett's failure to serve a timely response to the Request for Admissions necessitated this motion.

Riveros-Chavez requests sanctions of \$1,110.00, based upon 3.5 hours of attorney's work at a rate of \$300.00 per hour and 1 \$60.00 filing fee (Mot., Barkhordar Decl. ¶ 7.) Attorney's work consists of 2 hours drafting the motion, .5 hours in replying to any opposition, and 1 hour in appearing for the hearing on the motions. The Court finds the requested amount in sanctions unreasonable given this is a routine discovery motion, substantially similar to other motions filed in this case, and Tollett provided responses prior to the hearing. (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524 ["When the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value."].) Instead, a more reasonable award, is \$310.00, based upon 1 hour of attorney's work at a reasonable rate of \$250.00 per hour and 1 filing fee. Therefore, the Court imposes sanctions of \$310.00 on Tollett and Tollett's counsel.

IV. CONCLUSION

Plaintiff Guillermo Riveros-Chavez's motion to deem Shamlin's Request for Admissions, Set One, admitted against Defendant Cassandra Anais Tollett is MOOT.

Plaintiff Guillermo Riveros-Chavez's request for sanctions is GRANTED. Tollett and Tollett's counsel are ordered to pay \$310.00 in sanctions to Riveros-Chavez within 30 days of the hearing on the motion.

Riveros-Chavez is ordered to give notice.

DATED:

July 8, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.